

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, March 13, 2025. Contents noted. Recommend approval of the negotiated settlement agreement in DADS No. 2022-27392 against Sergeant Kenneth Miklas, Tax Registry No. 940473. The case was conferenced on March 4, 2025, 2025, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the dismissal of the charges in return for the recommended negotiated penalty of Departmental Imposed Training.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031828BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, MIKLAS	FIRST KENNETH	M.I.	COMMAND 113
SHIELD NO. 2052	TAX REGISTRY NO. 940473	SOCIAL SECURITY NO.	DATE APPOINTED 01/09/2006	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Kenneth Miklas, on or about August 17, 2021, at approximately 1312, while assigned to 113 PCT and on duty, in the vicinity of 113th Precinct stationhouse, Queens County, abused his authority as a member of the New York City Police Department, in that upon request he refused to provide his name to § 87(2)(b) without sufficient legal authority.	DISMISSED	TRAINING .00 - Respondent will comply with and complete re-training prescribed by the Department.
2. Sergeant Kenneth Miklas, on or about August 17, 2021, at approximately 1312, while assigned to 113 PCT and on duty, in the vicinity of 113th Precinct stationhouse, Queens County, abused his authority as a member of the New York City Police Department, in that he threatened to remove § 87(2)(b) to the hospital without sufficient legal authority.	DISMISSED	


FIRST DEPUTY COMMISSIONER05/22/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER7/11/25
DATE

**DISPOSITION OF CHARGES**

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SHIELD NO. 2052	TAX REGISTRY NO. 940473	SOCIAL SECURITY NO.	DATE APPOINTED 01/09/2006	
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TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
3. Sergeant Kenneth Miklas, on or about August 17, 2021, at approximately 1312, while assigned to 113 PCT and on duty, in the vicinity of 113th Precinct stationhouse, Queens County, abused his authority as a member of the New York City Police Department, in that he forcibly removed § 87(2)(b) to the hospital without sufficient legal authority.	DISMISSED	


FIRST DEPUTY COMMISSIONER05/22/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER7/11/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, May 22, 2025. Contents noted. I reviewed the negotiated plea in PODS Case No. C-031828 (DADS Case No2022-27392; CCRB Case No. 202104976) against Sergeant Kenneth Miklas, Tax No. 940473, with the recommendation that the Charges and Specifications against Sergeant Miklas be dismissed and that Sergeant Miklas receive Training. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this matter and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

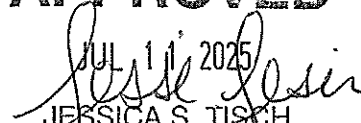


Tanja I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED



JUL 11 2025
JESSICA S. TISCH
POLICE COMMISSIONER